

The complaint

Mr and Mrs S complain that Society of Lloyd's (Lloyd's) unfairly declined their claim under their Property Owners Insurance Policy for roof damage after a storm.

What happened

Mr and Mrs S undertook extensive work on the roof of their property in 2013. They hold a Property Owners Insurance Policy with Lloyd's.

On 14 June 2020 a builder sleeping at the property said he heard a loud crashing sound and howling winds. He reported that tiles had fallen from the roof.

So Mr and Mrs S made a claim for the roof damage under their Property Owners Policy.

Lloyd's appointed an assessor to survey the damage at the property. They inspected the property on 23 July 2020. The subsequent report stated that there was *"one damaged tile and a small number of missing tiles from the front hanging elevation"*. The assessor advised the cause wasn't an insurable event but a result of frost damage and nail fatigue. The assessor also said that a photo from Google Street View from July 2014 showed a hanging tile.

Based on the assessment of the damage, Lloyd's declined the claim. They couldn't associate the damage with an insured event. Mr and Mrs S disagreed and raised a complaint. They asked that a full copy of the assessor's report and all supporting evidence be shared with them. They also queried why their claim hadn't been assessed under their accidental damage cover.

Lloyd's issued their final response to the complaint on 11 November 2020. They didn't uphold the complaint. They didn't agree that an insured event had caused the damage.

In April 2021 Mr and Mrs S brought their complaint to this service. They shared statements from the builder who'd been sleeping at the property at the time of the claim. And from the roofer who'd repaired their roof. The roofer said that they'd found no sign of frost damage.

Our investigator reviewed their complaint. He didn't think it should be upheld. He said he couldn't find evidence of an insured event. And therefore he couldn't say that Lloyd's had been wrong to decline the claim.

Mr and Mrs S didn't agree with our investigator. They felt that Lloyd's were now relying on wind speed at the time of the claim to decline it, rather than frost damage they'd relied on before. They said the builder who'd been staying at their house had stated there was gusting wind on the evening the damage occurred. And that he'd heard a big crash as the tiles fell off the eaves. They also said that they felt they'd shown wear and tear wasn't an issue, and therefore believed that they could make a successful claim under the accidental damage section of their policy.

Our investigator explained that it's the policyholder's responsibility to show that an insurable event has taken place. And that the insurer's role is to act in line with the policy terms and

conditions. He said that the insurer had investigated whether there'd been storm conditions as reported by the builder. But they'd found that there weren't any storm force winds in the week prior to the claim. Our investigator also noted that as there was no evidence of an insurable event – storm conditions - there could be no valid claim. Therefore it wasn't relevant whether the damage had been caused by nail fatigue or frost damage, as reported by the assessor. He also noted that Mr and Mrs S's roofer hadn't provided an opinion or evidence on what he considered to be the cause of the damage.

Our investigator also noted that Mr and Mrs S didn't claim that the cause of damage was an accident. And as such he didn't consider that cover should've been provided under the accidental damage section of their policy.

As agreement couldn't be reached, the complaint has come to me for a final decision.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

Having done so, I'm not going to uphold it. I'll explain why.

For any insurance claim to be successful, the policyholder must establish that they have a valid claim. In essence, the policyholder must show that an insured event occurred which caused damage or a loss. It's not for the insurer to establish the claim on the policyholder's behalf. If the policyholder is unable to meet this requirement the claim will fail at that stage. It is only once the policyholder has established a valid claim that the insurer is required to demonstrate that a policy exclusion applies to defeat it. Therefore, until and unless Mr and Mrs S have established a valid claim, it isn't Lloyd's' responsibility to establish what caused the damage to the roof.

Mr and Mrs S's policy provided cover for damage caused to their property by a range of insured events. The events were listed in the policy and are commonly found in most policies on the market. Examples included flood, fire and storm.

The cost of repairing the roof isn't covered by the policy simply because it was damaged whilst the policy was in existence. It's only covered if Mr and Mrs S can show that it was damaged by an insured event.

Mr and Mrs S felt that their roof was damaged by storm conditions. Lloyd's didn't think storm conditions had been present. They said that pictures of the damaged roof showed: *"a small number of tiles on the roof that have similar damage in various locations. Strong winds and rain do not break tiles in individual locations. If storm conditions have caused damage to the roof we would expect to see a wider area of damage around the broken tiles as others would have lifted and been disturbed"*. They said their assessment of the roof showed it had been damaged through frost damage and nail fatigue. This would class as wear and tear.

The independent weather database Lloyd's used to assess the claim advised of wind speeds gusting to 25mph on the day in question. As our investigator noted, the meteorological office defines a storm as wind speeds between 55 – 63 mph. But that minor damage to tiles can start from 47 mph. My own analysis of the weather conditions at the time indicate that the maximum gust around the time of the claim was 36 mph on 11 June 2020. So, based on the weather evidence, I'm not persuaded that the definition of a storm was met.

I do acknowledge that Mr and Mrs S's builder heard gusting wind and heard a tile fall off the roof. And that Mr and Mrs S have said: *"How can anyone explain why the tiles were hanging*

securely before these gusting winds and were damaged immediately after?”. So I can understand why they blame the weather conditions for the damage. But it's important to note that unless the weather data showed gusts of at or near a minimum of 47 mph, we wouldn't expect a roof with no existing issues to lose any tiles. I also note that Lloyd's have provided evidence that part of the damage to the roof was already present in 2014, demonstrating that at least some of the damage had occurred prior to the claim. This is also after Mr and Mrs S had extensive work done on their roof. So I'm satisfied that the roof wasn't in perfect condition, despite being regularly maintained, prior to the evening of 14 June 2020.

Mr and Mrs S haven't provided any evidence which persuades me that the roof was damaged by one of the events listed in their policy. It seems most likely from the evidence provided that any bad weather that did occur merely highlighted an existing problem with the roof, rather than being the dominant cause of the damage. I therefore conclude that Mr and Mrs S haven't satisfactorily established that the damage they claimed for was caused by an insured event.

I acknowledge that Mr and Mrs S said that Lloyd's: *“only focused on the frost damage issue and their, subsequently proven, incorrect claim of wear & tear. They used this as the fundamental reason for turning down the claim i.e. wear & tear trumped any other issue”*. They also said Lloyd's: *“introduced the issue of wind speeds to muddy the water still further”*. But I don't agree. Wind speeds were required in order to test whether storm conditions were present on the night the damage occurred. The wind speeds recorded showed that storm conditions hadn't been present. So I'm not persuaded that Mr and Mrs S have shown that the damage they claimed for was caused by an insured event. Therefore there's no requirement for me to consider whether or not Lloyd's were entitled to rely on the policy exclusion relating to wear and tear. Mr and Mrs S's claim effectively fell at the first hurdle. So even if I found in their favour on this second point the outcome of the complaint wouldn't change.

However, I can see that Mr and Mrs S have requested *“a full copy of your surveyor's report and all supporting substantive evidence”*. They said that Lloyd's evidence of wear and tear had never been forwarded to them.

Lloyd's' assessor considered that the damage was due to frost damage and nail fatigue. Although Mr and Mrs S's roofer said he found no sign of frost damage, he didn't comment on whether nail fatigue was evident. As I mentioned above, there's no requirement for me to consider whether or not Lloyd's came to the correct conclusion on wear and tear. And there's no requirement for Lloyd's to share their assessor's report of the damage with Mr and Mrs S. So I don't consider that Lloyd's did anything wrong when they didn't provide a copy of the report to Mr and Mrs S.

Should the claim have been considered under accidental damage?

Mr and Mrs S said that Lloyd's failed to consider their claim under accidental damage. They said: *“It is very worrying that the Insurer on receiving our proven evidence that wear and tear was not a factor, did not then attempt to meet our claim under the AD cover we had paid for”*. They felt it was unreasonable for our investigator to take the view that Lloyd's didn't need to consider their claim under accidental damage as they weren't claiming the cause of damage was an accident. And he had no evidence of an insurable event.

Unfortunately, I agree with our investigator. I don't have any evidence that the damage was caused by an accident. So, I can't require it to be considered as one.

I know this decision will disappoint Mr and Mrs S. I'm sorry that they feel that they haven't been treated fairly by Society of Lloyd's. But, taking all of the evidence into account, I'm not

persuaded Society of Lloyd's were unfair or unreasonable when they declined to cover the claim for the roof damage. So I won't be directing Society of Lloyd's to do anything further here.

My final decision

For the reasons outlined above, I don't uphold the complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr S and Mrs S to accept or reject my decision before 11 November 2021.

Jo Occleshaw
Ombudsman